

Memorandum to the Village Board of Tuxedo Park

From: David C. McFadden, former Mayor, 2005-2007 & 2017-2023

Date: September 18, 2026

Re: The public record on tax restraint, infrastructure investment, fiscal management, and responsibility for current board decisions

Purpose

At the September 17, 2026, Board meeting, Deputy Mayor Michele Lindsay asked me to tell the community that the current Board's property-tax increases resulted from my administration's decisions to lower or restrain taxes—which allegedly left a funding shortfall.

I cannot make that statement because the assembled public record does not support it.

In fact, I left the incoming Board with an unprecedented surplus of unallocated funds, providing substantial financial resources at the transition. The record shows that my administrations combined tax restraint with capital planning, project delivery, improved financial controls, outside funding, reserve and credit strength, and practical public works. It also shows that the current Board inherited a written engineering program, retained the same engineering professionals, continued many of the same projects, and later made its own decisions concerning scope, contracts, borrowing, reserves, change orders, schedules, and taxes.

This memorandum does not claim that every infrastructure matter was completed before I left office. Municipal infrastructure continues across administrations. It asks for a project-by-project and dollar-by-dollar reconciliation before later tax increases or financing decisions are attributed to a former Board.

Executive findings

- Infrastructure was not ignored. Village Engineer Joseph “Joe” Zongol’s December 14, 2022 memorandum documented nine active work streams involving dams, sewer rehabilitation, water mains, the Water Treatment Plant, pressure monitoring, district metering, and stormwater mapping (Exhibit C).
- Fiscal discipline and capital planning occurred together. S&P raised the Village’s general-obligation rating from AA- to AA/Stable in July 2021; the Village’s 2022 OSC fiscal-stress score was 1.7; and the Village reported in May 2023 that the 2022–23 budget was projected to finish 6.51% under budget and that the 2023–24 property-tax levy would decline 1.7621% without using unallocated surplus (Exhibit D).
- The Wee-Wah Dam project was planned, designed, permitted, bid, awarded, and financed before I became Mayor in July 2017. As described in my firsthand account in Exhibit E, while serving as Trustee I voted against the low bidder because the company had never built a dam. My administration then managed the inherited project and its later operating deficiencies (Exhibits C and E).
- The record contains documented cost control. The trunk-sewer investigation was completed for approximately \$49,520 against a \$91,600 budget—approximately \$42,080, or 46%, below budget (Exhibits C–E).
- The principal March 2025 authorizations—up to \$4.5 million for water-system improvements, \$650,000 for sewer improvements, and \$250,000 for the Pond No. 3 bridge—were decisions of the current Board. They are financing ceilings, not proof that the full amounts were issued, contracted, paid, or spent (Exhibit F).¹
- The McFadden record also includes several smaller visible public works, certified plant operations, equipment recovery, gate improvements, Wee Wah Beach Club renovation, lake management, and utility

¹ Exhibit F, March 2025 Bond Sequence, citing the March 3 and March 10, 2025, Board records. Bond resolutions establish maximum financing authority; they do not establish the amount issued, contracted, paid, or spent.

coordination that do not appear in a bond ledger but remain part of infrastructure stewardship (Exhibits G, I, and J).

Basis for assigning responsibility

The existence of unfinished work does not establish neglect by a preceding administration. Attribution should follow control over each phase: identification, investigation, design, permitting, grant work, borrowing, bidding, award, construction management, change orders, acceptance, debt service, and taxation. After leaving office, my administration had no control over later scopes, procurement methods, contracts, construction schedules, change orders, reserve use, or debt issuance.

Table 1 Project and financing chronology by mayoral administration

Administration names identify control of the stated phase, not ownership of the entire project. Dates identify documented actions or the administration period; they are not assumed completion dates. Financing authority is not actual spending.

Administration and period	Project or action	Phase overseen and documented status	Exh.
McFadden 2005–2007	Police financial controls	Mayor McFadden and Trustee Hansen implemented anti-fraud and internal controls credited by BST.	A
McFadden 2005	Police civilian-vehicle parking	Required civilian vehicles behind the Police Station or Lodge, keeping the Keep frontage available for police cruisers. A 2016 account describes the existing 2005 rule; original enactment remains to be recovered.	G
McFadden 2005–2007	First-term tax restraint	According to Deputy Mayor and Treasurer Christopher Hansen, the Village adopted its lowest tax increase in the preceding 15 years. I am paraphrasing Hansen; the full comparison series has not been assembled.	D
McFadden 2005–2007	Other first-term reforms	My original memorandum also identifies land-use, Building Department, labor, insurance, policing and gate-management reforms.	See note
Stebbins Following the 2005–2007 McFadden term	Tuxedo Lake Dam repair	According to my best recollection, the Tuxedo Lake Dam was repaired on time and on budget under Mayor Stebbins, who succeeded my first administration.	N/A
Guinchard–Guazzoni April 2015	Causeway Wall settlement	\$135,000 bond-anticipation note; financing preceded the July 2017 transition.	E
Guinchard–Guazzoni May / Dec. 2015	DPW loader and police vehicle	\$104,000 loader financing and \$38,626 police-vehicle financing; five-year terms.	E
Guinchard–Guazzoni Apr. 19, 2017	Club House and Continental Roads	\$300,000 road-reconstruction bond authorization before McFadden became Mayor.	E
Guinchard–Guazzoni Apr. 19, 2017	Water distribution and dam-related work	\$606,000 water and dam-related authorization before McFadden became Mayor.	E
Guinchard–Guazzoni Before July 2017	Wee-Wah Dam rehabilitation	Planning, design, permitting, bidding and award preceded the transition; up to \$2.97 million authorized April 19, 2017.	E
Pre-McFadden transition June 22, 2017	Dam, roads and water closing	Approximately \$3.65 million closed before McFadden became Mayor in July 2017.	E

Administration and period	Project or action	Phase overseen and documented status	Exh.
McFadden July 2017–2023	Inherited Wee-Wah Dam construction	Managed inherited construction and later valve-shaft, stop-log and operating deficiencies; interim measures and engineering consultation documented in 2022.	C, E
McFadden 2017–2023	Trunk-sewer investigation	Completed for approximately \$49,520 against a \$91,600 budget; approximately \$42,080 below budget.	C–E
McFadden 2017–2023	SSES sewer rehabilitation	Advanced and substantially delivered work in six road areas; \$531,750 estimate and grant up to \$132,938. Remaining capacity directed to trunk repairs near Pond No. 3.	C, E
McFadden 2017–2023	Tuxedo Lake water main	Investigated and designed replacement of the aging main; design nearing completion and moving toward permitting in the December 2022 record.	C, E
McFadden 2017–2023	Mountain Road-area water mains	Advanced investigation and design for Mountain Road, Schoolhouse Road and Lane, Circle Drive and Spartan Place.	C, E
McFadden 2017–2023	Water Treatment Plant compliance and clearwell	Advanced regulatory and engineering response, including proposed clearwell modifications and treatment-capacity adjustment.	C, E
McFadden 2017–2023	Pressure monitoring and district metering	Initiated pressure monitoring and water-used-versus-water-billed analysis to identify pressure problems and losses.	C, E
McFadden 2017–2023	Stormwater mapping	DPW and engineer planned mapping to support treatment and green-infrastructure decisions; planning is not represented as completed construction.	C
McFadden Oct. 2021	DPW and Police vehicles	\$148,031 Freightliner and hydraulic spreader; \$47,895 police interceptor; five-year lease purchases.	E
McFadden June 1, 2022	Dedicated Sewer Fund	Established separate sewer accounting to improve cost accountability; an accounting structure, not a construction expenditure.	D
McFadden June 1, 2022	Certified plant management	VRI began managing both plants with certified personnel and daily on-site presence. ²	J
McFadden Oct. 2022	Three dam inspections	Reports issued for Tuxedo Lake, Pond No. 3 and Wee-Wah dams; condition assessment distinguished from subsequent repairs.	C, E
McFadden Dec. 2022–Jan. 2023	Filter No. 2 response	DPW restored the unit after finding a blown fuse; a quoted \$5,700 visit was avoided. ³	I
McFadden 2022–2023	ARPA-supported work	Original memorandum identifies Pond No. 3 Dam, South Gate House heating and clearwell work as funded or advanced. Resolutions, amounts and expenditure schedules remain to be confirmed.	See note
McFadden to successor Board Dec. 14, 2022 program	Capital-program handoff	Zongol documented completed work, active designs and next steps. Successor Board retained the engineer and continued work streams; later costs require phase-by-phase attribution.	C

² Exhibit J; Village VRI announcement, May 31, 2022, and 2022 Annual Water Quality Report. The engagement, effective date, unanimous Board action, certified staffing, daily presence, and agency coordination are documented. Multiple-firm interviews, earlier notification delays, avoided fines, and improved decision support.

³ Exhibit I; December 2022 and January 2023 Construction Reports, DPW report for December 20, 2022–January 17, 2023, and Orange County treatment-facility study. Records support a blown control-panel fuse, Filter No. 2 returned to service, and avoidance of a quoted \$5,700 visit—not replacement of the entire filter.

Administration and period	Project or action	Phase overseen and documented status	Exh.
Citrin Mar. 3, 2025	Summit Road retaining wall	Original memorandum reports \$250,000 initially and \$350,000 as an increased authorization. Operative signed resolution and amount remain to be confirmed.	See note
Citrin Mar. 3, 2025	Pond No. 3 bridge	Up to \$250,000 authorized; distinct from Pond No. 3 dam and nearby sewer work.	F
Citrin Mar. 3, 2025	Sewer-system improvements	Up to \$650,000 authorized by the successor Board for an existing sewer work stream.	F
Citrin Mar. 3 / 10, 2025	Water-system improvements	March 3 proposal lacked the required supermajority. March 10 authorization adopted up to \$4.5 million, with a 40-year period of probable usefulness.	F
Citrin Dec. 18, 2025 Reported; unverified	Bridge, culvert and sewer financing	Original memorandum reports \$460,000 for Pond No. 3 bridge, \$225,000 for West Lake Road culvert and \$900,000 for sewer work. Signed resolutions must establish amounts and whether earlier authority was replaced or increased.	See note

The four issues requiring clear attribution

Wee-Wah Dam

The modern rehabilitation project was not conceived, procured, or financed by my 2017–2023 administration. Planning, engineering, grant work, easements, permitting, bidding, financing, and contractor awards have already occurred. April 19, 2017 authorizations included up to \$2.97 million for the dam, and approximately \$3.65 million closing occurred on June 22, 2017. Construction began before I became Mayor. While serving as Trustee, I voted against approving the low bidder because the contractor had never built a dam before. According to my best recollection, the Board approved the low bidder by a 3–2 majority despite my opposition. My administration inherited responsibility for managing the project, correcting deficiencies, and controlling the work performed during its tenure. The December 2022 engineering record described the dam as generally sound while identifying valve-shaft, stop-log, and operating concerns under temporary control and longer-term consultation (Exhibits C and E).

The inherited 2022 capital program

The December 14, 2022 Zongol memorandum is contemporaneous professional evidence of an active capital program, not a later political reconstruction. It documented dam inspections, sewer investigation and rehabilitation, Tuxedo Lake and Mountain Road-area water-main design, Water Treatment Plant compliance work, pressure monitoring, district metering, and planned stormwater mapping. The current Board retained the engineer and continued these work streams. That continuity supports crediting the earlier administration with the investigation, design, grant work, and planning completed before transition while assigning later borrowing, contracting, change orders, and construction outcomes to the officials who controlled them (Exhibit C).

Fiscal condition at transition

The available independent indicators do not establish that tax restraint weakened the Village. The AA/Stable upgrade, 1.7 fiscal-stress score, reported 6.51% favorable budget variance, and 1.7621% levy reduction without use of unallocated surplus show fiscal strength at the end of the administration. The exact unrestricted, restricted, and assigned balances received by the successor Board should be stated from a transition balance sheet and audited schedules, not from recollection. The defensible conclusion is that the record shows tax restraint, capital planning, and credit strength occurring together (Exhibit D).

Current Board borrowing and Pond No. 3

In March 2025, the current Board authorized up to \$5.4 million across water, sewer, and bridge projects. Those resolutions were not McFadden-era expenditures. Nor do they prove that the full authorized amounts were issued or spent. Pond No. 3 dam, bridge, and nearby sewer work must remain separate unless the governing resolutions and contracts expressly combine them. A final judgment about overruns requires the original estimate, adopted budget, bids, executed contracts, emergency authorizations, change orders, payments, revised financing, and current cost to complete (Exhibit F).

Table 2 Public works and operational accomplishments

Administration and period	Area	Accomplishment	Evidence treatment
McFadden 2017–2023	In-house public works	Group mailbox stands; traffic-triangle repair using leftover granite; multi-skilled DPW delivery. ⁴	Records and firsthand statements classified in Exhibit G.
McFadden 2017–2023; auction 2021–2022	Equipment stewardship	DPW and Police inventory; surplus disposal; \$8,545 received from 10 of 11 DPW items. ⁵	Official list and report; reinvestment trail remains to be completed.
McFadden 2017–2023	Wee-Wah Park	Beach, landscaping, trees, grills, picnic tables, waste facilities, storage, and access improvements.	Village records and McFadden firsthand account.
McFadden 2017–2023; Front Gate 2020–2023	Gates and access	SafePassage, replacement traffic booth, Front Gate restoration, South Gate contractor egress. ⁶	Village records and attributed operational account.
McFadden Parking rule 2005; signs 2017–2023	Identity and safety	Village signs, police civilian-vehicle parking rule, delivery and pedestrian controls. ⁷	Public records and attributed details.
McFadden / O&R Beginning 2020	Electric reliability	O&R staging arrangement, grid work, and vegetation coordination. ⁸	O&R independently documents project; rental and outage effects attributed to McFadden.
McFadden 2017–2023; geese plan 2022	Lake management	ProcellaCOR treatment in three lakes and nuisance-geese measures. ⁹	Village reported reduced milfoil; comparative effectiveness remains an observation.

⁴ Exhibit G. Reuse of leftover Wee-Wah granite and deliberate recruitment of multi-skilled DPW staff are my firsthand account; monthly reports corroborate varied in-house work. Savings are not quantified without work orders, material, payroll, skills, and outside-cost records. In-house work remains subject to applicable procurement, prevailing-wage, licensing, and safety requirements.

⁵ Exhibit G; December 2021 DPW surplus recommendation and April 2022 Construction Report. The DPW auction and \$8,545 from 10 of 11 items are documented. The complete DPW and Police inventory, Police disposals, reinvestment of proceeds, and linkage to later purchases remain my account pending inventories, resolutions, auction settlements, and ledgers.

⁶ Exhibit G; Village gatehouse announcement, August 12, 2021, documents repainting the original iron gate and restoring its lanterns. The October 1, 2016 TPFYI Board account records my description of an existing 2005 police civilian-vehicle parking rule. The original enactment has not been recovered; no formal resolution number is assigned.

⁷ Exhibit G; January 12, 2022 Village signage posting and General Fund activity ledger. The ledger identifies \$1,203.65 for Wee-Wah Park signs and a separate \$1,030.23 carved-sign deposit without a location. Attribution of the latter to the Front Gate, my design credit, the Village Office location, wooden material, and DPW installation role remain my recollection pending location-specific records.

⁸ Exhibit G; O&R project history and April 13, 2021 Phase II announcement corroborate the grid upgrade, poles, switches, trimming, and intended reliability benefits. The DPW-site rental, term and receipts, Village vegetation coordination, and magnitude of reduced blackouts remain my account pending agreements, ledgers, work logs, and outage data.

⁹ Exhibit G; Village Eurasian Watermilfoil Treatment notice, March 20, 2024 minutes (Resolution 0320-12), and 2022 Nuisance Geese Management Plan. The Village reported reduced milfoil in all three lakes. Diver authorization was \$16,000 + \$4,000 + \$55 = \$20,055, plus \$3,200 per additional day; it is not a final paid total. Comparative effectiveness and the extent of goose-waste reduction remain my observations pending invoices, treatment logs, and outcome reports.

Administration and period	Area	Accomplishment	Evidence treatment
McFadden June 1, 2022	Certified plant operations	VRI retained for both plants beginning June 1, 2022.	Certified staffing, daily presence, and agency coordination documented.
McFadden Dec. 2022–Jan. 2023	Filtration reliability	Filter No. 2 returned to service; quoted \$5,700 visit avoided.	Village reports; continuity risk attributed to McFadden.

Audit findings, reforms, and procurement

The 2018 New York State Office of the Comptroller (OSC) audit must be applied to the correct period. Its principal scope was January 1, 2015 through May 17, 2017, during the Guinchard–Guazzoni administration, before my July 2017 mayoralty; professional-services testing extended through December 2017 and therefore overlapped the McFadden administration. The audit identified genuine weaknesses. My administration’s responsibility was to respond with stronger oversight, written scopes, competitive records, quotations, and policy changes. Because the later record is not a second audit using the same sample, the appropriate conclusion is procedural improvement—not a claim that later noncompetitive spending was zero (Exhibit B).¹⁰

Audit area	Historical finding	Documented response or careful conclusion
Professional services	14 of 15 providers; \$926,188 paid without solicited competition.	Proposal and interview processes described; later files contain formal scopes and proposals.
Written agreements	Five providers; \$169,330 paid without written agreements.	Later engineering records contain scopes, fees, amendments, and acceptance terms.
Required quotations	11 of 23 tested purchases; \$102,543 lacked required quotations.	Later sewer records identify bids and quotations for added work.
Clerk/Treasurer controls	Incompatible duties created a segregation-of-duties risk.	Additional review and compensating oversight were required.
Water billing	OSC identified inadequate rate documentation and billing controls.	No unsupported claim of full remediation is made.
Information technology	Policy, recovery, filtering, and training weaknesses.	No unsupported claim of full remediation is made.
John Ledwith	OSC disclosed no significant findings concerning the activities examined, while identifying structural control risk.	Village response reported no misappropriation or serious misconduct; exact qualification preserved in Exhibit H. ¹¹
Earlier control record	BST identified serious Police Department control failures in 2007.	BST credited McFadden and Hansen with reforms that appeared to ameliorate the problems (Exhibit A).

Records needed from the current administration for complete reconciliation

1. Identify each operating expense or capital obligation the current Board claims my administration created, deferred, or left unfunded, with the date and source of that conclusion.
2. For each project, state what had already been investigated, designed, permitted, grant-funded, reserved for, or placed in the capital program before June 2023.

¹⁰ Exhibit B; OSC Report 2018M-114. The principal scope was January 1, 2015–May 17, 2017; professional-services testing extended through December 2017. Attribution must therefore be applied finding by finding. The audit figures describe different findings and must not be added together as a single loss or spending total.

¹¹ Exhibits B and H; OSC Report 2018M-114 and Village response dated October 16, 2018. OSC stated that its audit “did not disclose significant findings with respect to the Village Clerk/Treasurer’s activities,” but identified a segregation-of-duties weakness. OSC did not name Mr. Ledwith or use “cleared,” “exonerated,” or “vindicated.” The Village response—not OSC—stated that no misappropriation or serious misconduct was discovered.

3. Provide the cash, restricted reserves, assigned balances, fund balances, receivables, grants, and project accounts received at transition.
4. Separate post-transition scope additions, price escalation, delay, rebidding, contract selection, change orders, financing terms, and current debt policy from inherited project needs.
5. State what amounts were actually issued, contracted, paid, or encumbered under each bond authorization, rather than only the maximum authorization.
6. For Pond No. 3, separate dam, bridge, and sewer costs and provide the original estimate, budget, contracts, change orders, payments, revised financing, and cost to complete.
7. Explain the FY2023 \$318,859 proceeds-of-debt item and the FY2024 \$379,054 “Due to Other Funds” liability using audited AFR footnotes and interfund schedules.¹²
8. Identify the owner-side procurement and project-management controls used to review bids, approve change orders, monitor schedules, and verify final costs.

The two accounting amounts in question 7 are questions, not accusations. Timing alone does not connect them to the March 2025 authorizations.

Conclusion

I support necessary investment in the Village’s infrastructure. My administrations made such investments while strengthening controls, pursuing outside funding, improving the Village’s credit, maintaining a low fiscal-stress score, and restraining the property-tax burden.

The current Board inherited a professional engineer, a written capital program, completed and active sewer work, water-main design, dam inspections, regulatory submissions, operational monitoring, certified plant management, stormwater planning, and a favorable fiscal record. It then made its own decisions about scope, contracts, borrowing, reserves, change orders, schedules, and taxes.

The current Board may conclude that its choices were necessary. Those choices should nevertheless be evaluated on their own facts and should not be attributed to a former administration without a documented financial reconciliation. Attribution should follow actual control, and each administration should receive credit for the work it completed and responsibility for the decisions it made.

Exhibit index and citation reconciliation

The completed exhibit package is the controlling evidentiary set. The former memorandum’s internal “Exhibit 1–9” tables are replaced by Tables 1 and 2 above; its proposed A–K exhibit list is superseded by the following completed A–J index. Detailed source citations appear within each exhibit.

Exhibit	Title	Use in this memorandum
A	2007 BST Forensic Findings and Control Reforms	Earlier control record and reforms
B	2018 OSC Audit and Village Response	Audit scope, findings, response, and procurement
C	December 14, 2022 Zongol Capital Program	Inherited capital program and project status
D	Fiscal Achievement Scorecard	Credit, fiscal stress, budget, tax, and cost-control record
E	Infrastructure Chronology by Administration	Project-phase attribution and financing chronology
F	March 2025 Bond Sequence	Successor-Board authorizations and financing definitions
G	Public Works, Parks, Gates, Equipment, Utilities, and Lake Management	Consolidated public-works and operating record
H	John Ledwith Chronology	Exact OSC and Village language and chronology

¹² The FY2023 \$318,859 proceeds-of-debt item and FY2024 \$379,054 due-to-other-funds liability remain unresolved accounting questions pending audited AFR footnotes and interfund schedules. Neither is linked to the March 2025 bond authorizations by timing alone; no completed financial-reconciliation exhibit is represented as available.

Exhibit	Title	Use in this memorandum
I	Water Treatment Plant Filter No. 2 Reliability Response	Filtration repair and avoided vendor visit
J	Certified Water and Sewer Plant Management	VRI engagement and certified operations

Sources and References

The following sources support this memorandum and Exhibits A–J. References are consolidated to avoid duplication. Firsthand recollections and matters requiring additional documentation are identified in the memorandum and exhibits.

1. **BST Valuation & Litigation Advisors, LLC.** Forensic report dated May 9, 2007. Redacted report included in the accompanying exhibit package. **Exhibits A and E.**
2. **New York State Office of the State Comptroller.** [Village of Tuxedo Park—Selected Financial Operations, Report 2018M-114](#), including the Village’s October 16, 2018 response. **Exhibits B, D and H.**
3. **Joseph Zongol, Village Engineer.** [Capital & Infrastructure Project Status Update, December 14, 2022](#). **Exhibits C and E.**
4. **Village of Tuxedo Park.** [Capital Infrastructure Projects Year-End Update](#). **Exhibit C.**
5. **S&P Global Ratings.** [Village of Tuxedo Park General-Obligation Rating Summary, July 27, 2021](#). **Exhibit D.**
6. **New York State Office of the State Comptroller.** [2022 Fiscal Stress Monitoring System Municipal Summary](#). **Exhibit D.**
7. **Village of Tuxedo Park.** [Fiscal Health of the Village Has Never Been Better, May 10, 2023](#). **Exhibit D.**
8. **New York State Office of the State Comptroller.** [Property Tax Cap for Villages](#) and [Constitutional Debt Limit Guidance](#). **Exhibit D.**
9. **Village of Tuxedo Park Board of Trustees.** [March 3, 2025 Board record](#) and [March 10, 2025 Special Meeting and Water-System Bond Resolution](#). **Exhibits D, E and F.**
10. **Village of Tuxedo Park.** [Mayor Announces Gatehouse Operations, August 12, 2021](#). **Exhibit G.**
11. **Tuxedo Park FYI.** [October 1, 2016 Board meeting account](#), including discussion of the existing 2005 police civilian-vehicle parking rule. **Exhibit G.**
12. **Village of Tuxedo Park.** [January 12, 2022 identity-signage posting in the Village news archive](#) and [General Fund activity detail, including Wee-Wah Park signs](#). **Exhibit G.**
13. **Village of Tuxedo Park.** December 2021 surplus-equipment recommendation and April 2022 Construction Report. **Exhibit G.**
14. **Orange & Rockland.** [Infrastructure project overview, including Tuxedo Park reconductoring](#) and [Phase II Tuxedo Park Electric-Reliability Project announcement, April 13, 2021](#). **Exhibit G.**
15. **Village of Tuxedo Park.** [Eurasian Watermilfoil Treatment notice](#), [March 20, 2024 Board minutes](#), and [2022 Nuisance Geese Management Plan](#). **Exhibit G.**
16. **New York Supreme Court, Orange County.** [Guazzoni and Zgonena v. Village of Tuxedo Park, David McFadden, Mayor, and John Ledwith](#), decision dated June 12, 2018, Index No. EF000551-2018. **Exhibit H.**
17. **Village of Tuxedo Park.** [December 2022 Construction Report](#), [January 2023 Construction Report](#), and DPW Report covering December 20, 2022–January 17, 2023. **Exhibits I and J.**
18. **Orange County.** [Regional Ground-Water Study—Tuxedo report and treatment-facility description](#). **Exhibit I.**
19. **Village of Tuxedo Park.** May 18, 2022 Board agenda, [VRI Environmental Services announcement, May 31, 2022](#), and [2022 Annual Water Quality Report](#). **Exhibit J.**

To view the Exhibits, visit www.tuxedoparkrights.org/taxesandinfrastructure